

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

DECISION

Application no. 43132/20
Maricel DARABAN
against Romania

The European Court of Human Rights (Fourth Section), sitting on 3 February 2022 as a Committee composed of:

Armen Harutyunyan, *President,*
Jolien Schukking,
Ana Maria Guerra Martins, *judges,*

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having regard to the above application lodged on 10 September 2020,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The applicant, Mr Maricel Daraban, was born in 1965. He was represented by Mr I.R. Gheorghe, a lawyer practising in Buzău.

The applicant's complaints under Articles 10 and 11 of the Convention concerning the alleged breach of his rights to freedom of expression and peaceful assembly following a fine imposed on him for a peaceful protest were communicated to the Romanian Government ("the Government"), who submitted observations on the admissibility and merits. The observations were forwarded to the applicant's representative, who was invited to submit observations on behalf of the applicant. No reply was received to the Registry's letter.

By letters dated 28 September 2021, sent by registered post, both the applicant and his representative were notified that the period allowed for submission of the applicant's observations had expired on 26 August 2021 and that no extension of time had been requested. The applicant's and his representative's attention was drawn to Article 37 § 1 (a) of the Convention, which provides that the Court may strike an application out of its list of cases where the circumstances lead to the conclusion that the applicant does not intend to pursue the application. The applicant's representative and the

applicant received those letters, respectively, on 8 and 11 October 2021. However, no response has followed.

THE LAW

In the light of the foregoing, and in the absence of any special circumstances regarding respect for the rights guaranteed by the Convention and the Protocols thereto, the Court, in accordance with Article 37 § 1 (a) of the Convention, considers that it is no longer justified to continue the examination of the application.

Accordingly, the case should be struck out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases.

Done in English and notified in writing on 24 February 2022.

Viktoriya Maradudina Acting Deputy Registrar	Armen Harutyunyan President